IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON FRIDAY, THE 8TH DAY OF AUGUST, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

SUIT NO. C2/05/2023

MILLICENT JACKSON ---------- PLAINTIFF
HOUSE NO. 6 CLOVE STREET
SOUTH ODORKOR
ACCRA

VRS

EDWARD NKANSA-GYANE ---------- DEFENDANT
PLOT NO. 160
17 AUGUSTUS AKIWUMI ROAD
AIRPORT RESIDENTIAL AREA
ACCRA

PARTIES: PLAINTIFF ABSENT REPRESENTED BY FRANCIS GHARTEY
DEFENDANT ABSENT REPRESENTED BY JAMES BOADI

COUNSEL: ANITA ABENA ASANTE HOLDING THE BRIEF OF HARUNA MAAMAH, ESQ. FOR THE PLAINTIFF PRESENT

GENEVIEVE QUARCOO APPIAH HOLDING THE BRIEF OF KWADWO ADDEAH-SAFO, ESQ. FOR THE DEFENDANT PRESENT

JUDGMENT

FACTS

On the 4th of July 2023 the Plaintiff herein, caused a Writ of Summons to be issued in the registry of this Court against the Defendant claiming the following reliefs:

a. An order evicting Defendant from the premises with immediate effect.
b. Payment of USD 90,500.00 or the cedi equivalent at the current exchange rate to the Plaintiff being the accumulated outstanding rent due as at 30th June 2023 and owing by Defendant.
c. Interest on the USD 90,500.00 at the prevailing bank rate from the date of judgment till final payment.
d. Damages for breach of contract.
e. Cost.

The Defendant entered conditional appearance on 5th October 2023 and on 10th November 2023 a Statement of Defence and Counterclaim was filed for the Defendant by his Lawyer. With leave of the Court granted on 22nd May 2024, an amended Statement of Defence and Counterclaim was filed by the Defendant's Lawyer on 29th May 2024. The Defendant states that the Plaintiff is not entitled to any of the reliefs she seeks since this is an action brought in bad faith and an action in unjust enrichment. The Defendant counterclaims as follows:

a) An order for recovery of USD 185,000.00 or its equivalent in Ghana Cedis (i.e. GHS 2,220,000.00 going by the exchange rate of USD 1.00 to GHS 12.00 as at today) from the Plaintiff;
b) Accrued interest on the said amount from December 2019 till date of final payment in accordance with GCB Bank commercial rate of interest;
c) Recovery of USD 38,800.00 or its cedi equivalent of GHS 504,400.00 going by the exchange rate of USD 1.00 to GHS 13.00 as at today and GHS 126,400.00 from the Plaintiff;
d) Accrued interest on the said amount from January 2024 till date of final payment in accordance with GCB Bank commercial rate of interest;
e) Recovery of all personal/household items or belongings of the Defendant which were kept in the disputed property; and
f) Costs, including legal costs.

An amended Reply and Defence to Counterclaim was filed for the Plaintiff by her Lawyer on 10th June 2024.

THE CASE OF THE PLAINTIFF

The Plaintiff's case as contained in the Statement of Claim dated 4th July 2023, is that she is a retired banker and owner of a house situated on Plot No. 160, 17 Augustus Akiwumi Road, Airport Residential Area-Accra in the Greater Accra Region of Ghana. The Plaintiff describes the Defendant a businessman and her tenant. The Plaintiff states that she entered into a Tenancy Agreement with Defendant dated 25th February 2016. That per the Tenancy Agreement, she rented her property situated on Plot No. 160, 17 Augustus Akiwumi Road, Airport Residential Area, Accra in the Greater Accra Region of Ghana to Defendant from 25th February 2016 to 23rd February 2026 at an agreed rent as per clause 4

of the said Agreement. That the Defendant fulfilled his rent obligations to her from 25th February 2016 until June 2018. According to the Plaintiff since June 2018 Defendant has failed and or neglected to pay the rent owed and due to date.

The Plaintiff further avers that the total accumulated rent due and owing by Defendant is USD 90,500.00 or its cedi equivalent at the prevailing exchange rate as at 30th June 2023. The Plaintiff states that she has made numerous demands on the Defendant to settle the arrears to which the Defendant assured her on several occasions that he will fulfil his obligation but has failed to do same. The Plaintiff continued that following the assurances of Defendant, she decided to give the Defendant enough time to live up to his promises.

The Plaintiff states further that on 20th March 2023 she caused her Lawyers to write to the Defendant demanding the payment of the outstanding rent amount with interest accrued. That the Defendant on 22nd March 2023 responded to her Lawyers via email requesting for some time to respond to the letter as he was out of the jurisdiction and needed to consult with his Lawyers.

The Plaintiff further says that on 26th April 2023 she caused her Lawyers to send a reminder to the Defendant via email however Defendant has failed and/or neglected to respond to same.

According to the Plaintiff, the Defendant has neglected, refused and/or failed to make any payment for the rent owed and due as well as interest thereof. The Plaintiff says that at the time of filing this instant action, the total indebtedness of the Defendant to her is USD 90,500.00 or the cedi equivalent at the current cedi exchange rate and interest thereof which the Defendant has refused to pay despite several demands.

Additionally, the Plaintiff states that the Defendant has made structural and design changes to her property without prior notice to her or any written consent from her by

making the Defendant in breach of clause 5.6 of the Tenancy Agreement. The Plaintiff says that the said breach has fundamentally changed the nature of the property and would cause her pecuniary loss in order to restore the property to its previous state.

The Plaintiff says that Defendant is determined not to pay the total outstanding rent of USD 90,500.00 or the Cedi equivalent at the current exchange rate and the interest accrued thereof unless compelled by this Honourable Court to do so.

The Plaintiff in her amended Reply to the amended Statement of Defence and Counterclaim of the Defendant states that the Defendant is not entitled to his counterclaim or any of the reliefs sought for.

THE CASE OF THE DEFENDANT

The Defendant in his amended Statement of Defence and Counterclaim filed on 29th May 2024, denied the claim of the Plaintiff and stated that all negotiations leading to the execution of the agreement was done with Plaintiff's husband, namely, Prof. Jackson. That the agreed rent payable is not regulated by clause 4 of the Tenancy Agreement. The Defendant further states that as a term of the Tenancy Agreement, which is equally an implied term in all tenancy agreements, the landlord covenants to grant the tenant peaceful enjoyment of the property without any form of interruption in so far as the tenant pays his due rent.

The Defendant states that by clause 4 of the Tenancy Agreement, he was expected to carry out some renovation works on the property; an activity he duly carried out in terms of the agreement to the notice of the Plaintiff and her husband. That the renovation turned out to be a complete re-building of the house going by the works undertaken by the him. That this was duly brought to the attention of the Plaintiff and her husband.

The Defendant states that a little over one year (i.e, sometime in 2017) after he had carried out the said renovation works on the property in accordance with clause 4 of the Tenancy Agreement, the property still remained inhabitable for the residential purpose for which same was rented to the him.

The Defendant further states that there was some bad stench; i.e, a disgusting odor within the entire compound (which appears to be sewage smell). That the bedrooms, living rooms, kitchen and all other living areas of the house could not be used for the purpose for which same was rented. That the stench was so bad that he could not live in the living room and other living areas of the house so he had to convert the car garage into a living room to be able to manage his stay in the house**.**

The Defendant states that he brought these issues to the attention of the Plaintiff and her husband, Prof. Jackson, through several communications (i.e. through letters and telephone) however none of them visited the house until the complaint became persistent before the Plaintiff responded.

The Defendant states that Plaintiff then detailed her husband, Prof. Jackson to come and examine the complaints made by the Defendant. That when Prof. Jackson arrived in the house he indeed, noticed the bad stench and even admitted of the existence of this stench long before same was rented out to the Defendant. The visit by Prof. Jackson was sometime in 2019, just before the COVID19 global pandemic set in.

The Defendant states that during the visit of Prof. Jackson, several options were discussed; which included engaging waste engineers to examine the issue with the stench and have same resolved among others.

The Defendant states that he had to then engage the services of professional waste engineers to examine, identify the cause of the stench and resolve same at a cost of more than USD 65,000.00. That, though the engineers conducted the works as directed, they

could not resolve the problem with the bad stench, notwithstanding the huge amount of monies paid by the Defendant to these engineers.

The Defendant says that the engineers nevertheless concluded that the only way to have the issue with the bad stench resolved for the structures contained in the compound to be pulled down for proper examination of the problem and resolved. That he brought this to the attention of the Plaintiff and her husband and suggested a joint-venture where he would re-build the structure after same had been pulled down. That the Plaintiff and her husband however rejected the entire idea, but never provided a resolution to the challenge of the bad odor that he had to contend with till date.

The Defendant states that when he noticed that the Plaintiff were not interested in ensuring his quiet enjoyment of the rented property, notwithstanding her due notice of the challenges being faced by him, he decided to raise the first floor of the building so that he could manage to live in property. However, the Plaintiff and her husband rejected this as well; hence he had to contend with the inhabitable nature of the property till date.

The Defendant states that even though he continued to observe his side of the agreement to the Plaintiff, the Plaintiff had deliberately failed to positively respond to the challenges that he was and still facing relative to occupation of the property.

The Defendant states that though he is expected to occupy the property as residential apartment; which covers, three (3) bedrooms, a study, two-bedroom outer house, with his family, he has not been able to enjoy the property due to the problems enumerated above. For that reason, he had to differently accommodate his family at a different house at great expense to him.

The Defendant further states that, he is unable to either accommodate or even receive visitors in the house because, save the car garage which he had converted to a living room

and one bedroom (which is equally affected by the bad odor), no other place within the house is habitable for the purpose for which the house was rented. Additionally, the Defendant states that he had had to seek further medical attention in the United Kingdom following the unhealthy bad odor that he had to inhale within the property; which resulted in continuous and uncontrollable coughing.

The Defendant states that he had to bear the costs of managing this bad odor alone from 2017 till date; which has effectively disturbed his peaceful and quiet enjoyment of the property. That the Plaintiff is therefore in breach of clause 6.3 of the Tenancy Agreement which entitles him to recover damages for breach of contract from the Plaintiff. That from the nature of the breach which had prevented him from the use of the property in accordance with the terms reached he would be entitled to recover from the Plaintiff an amount of USD 120,000.00 in addition to the USD 65,000.00 already spent to abate the challenge with the bad stench in the house.

Moreover, the Defendant states that during the pendency of this suit, the Plaintiff, without notice to him, has evicted him and his entire household from the house. The Defendant states that he does not even know where his properties in the house have currently been placed. That the Plaintiff's conduct has brought untold hardship on him as he currently has no access to his personal belongings, which include cash amount of USD 38,800.00 and GHS 126,400.00 kept in the residence. That, in view of the fact that all persons living in the house were violently thrown out and locked outside the gate, none of the household items has since been recovered from the house. The Defendant states that the Plaintiff is not entitled to any of the reliefs she seeks.

LEGAL ISSUES FOR DETERMINATION

At the application for directions stage on 14th August 2024, the Court adopted and set down the issues set out in the Plaintiff's application for directions filed on 10th June 2024 as well as the Defendant's additional issues filed on 2nd August 2024 for trial as follows:

1. *Whether or not the Defendant is liable for outstanding rent to the Plaintiff since June 2018 as stipulated in the Tenancy Agreement between the parties.*
2. *Whether or not the Defendant has previously accepted liability for the said indebtedness of the rent accrued.*
3. *Whether or not the Defendant took possession of the property at a time when subject to the agreed scope of renovation to be done in the tenancy agreement was in a habitable condition.*
4. *Whether or not the Defendant carried out structural repairs and alterations to the property without the prior written consent of the Plaintiff.*
5. *Whether or not the acts of the Defendant not paying rent since June 2018 and carrying out structural repairs and alterations to the property without the prior written consent of the Plaintiff, amount to a breach of the terms of the Tenancy Agreement.*
6. *Whether or not the Defendant is entitled to recover from the Plaintiff an amount of USD 185,000.00 or its equivalent in Ghana cedis with accrued interest for breach of contract.*
7. *Whether or not the Plaintiff has been interfering with the quiet enjoyment of the rented property.*
8. *Whether or not the Plaintiff ejected Defendant from the property notwithstanding the pendency of the suit.*
9. *Whether or not the Defendant is entitled to recover from the Plaintiff an amount of USD 38,800.00 or its cedi equivalent of GHS 504,400.00 going by the exchange rate of USD 1.00 to GHS 13.00 as at today and GHS 126,400.00 from the Plaintiff being monies lost due to the Plaintiff's ejection of Defendant from the property.*

At the conclusion of the trial, Counsel for the Plaintiff filed his written address on 27th June 2025 and Counsel for the Defendant on his part filed his written address 15th July 2025. I must commend the Lawyers for the industry put in the well-researched addresses filed on behalf of the parties.

BURDEN AND STANDARD OF PROOF

In every civil case, the general rule is that the burden of proof rests upon the party, whether Plaintiff or Defendant, who substantially asserts the affirmative of his or her case. ***Sections 10 – 17*** of the **Evidence Act, 1975 (NRCD 323),** state the position of the law with regard to the burden of proof.

Section 12(1) of the Evidence Act, 1975 (NRCD 323), provides that:

> *"except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of probabilities."*

In the case of ***Serwah v. Kesse*** **[1960] GLR 227-231,** Van Lare JSC stated:

> *"The law as I understand it is that in all civil cases the preponderance of probability in favour of a party may constitute sufficient ground for a judgment in favour of that party. The general rule, of course, is that the onus probandi lies on the party who substantially asserts the affirmative of the issue".*

Section 11 (4) of the Evidence Act explains the burden of proof in civil cases as follows:

> "*In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence, a reasonable mind could conclude that the existence of the fact was more probable than its non-existence*".

In the case of ***Ackah v. Pergah Transport Ltd & Ors* [2010] SCGLR 728** the Supreme Court held *inter alia* as follows:

> *"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the Court or tribunal of fact such as a jury…"*

Also, in the case of ***Ababio v Akwasi IV* [1994-95] GBR 774@777**, the Court stated that a party whose pleadings raise an issue essential to the success of the case assumes the burden of proving such issue. Reference is also made to the cases of ***Takoradi Flour Mills v. Samir Faris* [2005-06] SCGLR 882** and ***Re Ashalley Botwe Lands: Adjetey Agbosu & Ors v. Kotey & Ors [2003-04]* SCGLR 420** which further elucidate the burden of proof as statutorily provided.

As the Defendant has a counterclaim against the Plaintiff for his reliefs stated above, the burden of proof lies equally on the Defendant to prove his case. A counterclaim is a separate and independent action with the burden of proof no different from the Plaintiff's legal burden.

In the case of ***Op. Kwasi Asamoah v. Kwadwo Appea (2003-04) SCGLR 226 at 246*,** it was held that:

> "*The position with regards to proof of the Defendant's case was that since they made a counterclaim, they assumed the same onus of proof as lay on the Plaintiff*."

See also the case of ***Nii Odoi Kwao Asumang & 2 Ors v. William Sowah Charwey & 14 Ors (2014) 75 GMJ 108 at 135*.**

Therefore, each party is to prove their respective cases on a balance of probabilities as stipulated by ***sections 11 and 12 of the Evidence Act, 1975 (NRCD 323)***.

ANALYSIS AND EVALUATION OF THE EVIDENCE ADDUCED BY THE PARTIES

I shall now analyse and evaluate the evidence adduced by the parties in support of their respective cases within the context of their corresponding legal burdens and the prescribed standard of proof as provided under *the Evidence Act, 1975 (NRCD 323)* to determine the issues before the Court.

I shall address the first two issues together. Issue 1 is ***'whether or not the Defendant is liable for outstanding rent to the Plaintiff since June 2018 as stipulated in the Tenancy Agreement between the parties'*** and issue 2 is ***'whether or not the Defendant has previously accepted liability for the said indebtedness of the rent accrued.'***

From the evidence on record, the Plaintiff testified that she is the owner of the property described above and that the Defendant expressed his willingness to rent her property for a certain period and upon agreeing on the terms of the tenancy, the Defendant presented a tenancy agreement to her and they signed same on 25th February 2016. The Plaintiff tendered in evidence Exhibit 'A' being a copy of the tenancy agreement she entered into with the Defendant. The Plaintiff further testified that contrary to the expressed terms of the tenancy agreement, the Defendant has failed and neglected to pay rent which is owed and due to her from June 2018 till date, even after persistent demands have been made on him.

According to the Plaintiff, she has made several demands on the Defendant to settle his rent arrears to her and also served a formal eviction notice but the Defendant has not fulfilled his rent obligations to her; and also refused to vacate the premises. The Plaintiff also tendered Exhibit 'B series' being copies of the demand notices she sent to the Defendant dated 6th July 2022, 22nd August 2022, 29th September 2022 and 16th December, 2022.

In his evidence in support of his defence, the Defendant confirmed having entered into a tenancy agreement with the Plaintiff on 25th February 2016 and tendered the tenancy agreement as Exhibit '1' which is the same as Plaintiff's Exhibit 'A' being a copy of the tenancy agreement between the parties herein.

From the said tenancy agreement, the Defendant was supposed to pay rent to the Plaintiff as stipulated under clause 3, however from the evidence on record, even though the Defendant admitted that he owed rent and notwithstanding several demand notices from the Plaintiff, the Defendant did not pay his rent from June 2019. Exhibit 'B series' indicate that the Plaintiff on July 6, 2022, August 22, 2022, September 29, 2022 and December 16, 2022 demanded for three years outstanding rent from June 2019. From Exhibit 'C series' the Defendant acknowledged receipt of the Plaintiff's letter dated 22nd August 2022 and appealed to the Plaintiff and her husband to grant him a little time to resolve any outstanding monies owed as he gave his reasons for not being able to pay his rent as agreed in his letter dated 3rd October 2022. The Defendant further sent an email to the Plaintiff and apologised for the tone of his initial response to her letter and also apologised for the delay in rent payments and added that it was not intentional. The Defendant further pleaded with the Plaintiff to be patient with him to reduce or clear the outstanding rent.

From the evidence on record, I find that the Plaintiff has on a balance of probabilities been able to lead sufficient evidence to establish her claim that the Defendant is liable to pay to her rent from June 2019 to June 2023. I further find from the evidence on record particularly from Exhibit 'C series' and Exhibit '3' that the Defendant accepted liability for the said indebtedness of the rent accrued.

Even though the Defendant under cross examination denied the amount the Plaintiff is claiming as the accrued rent, the Defendant could not adduce contrary cogent evidence to challenge same except mere denial. However, the Plaintiff led satisfactory evidence in support of her claim of the rent accrued as USD 90,500.00.

Moreover, Counsel for the Defendant submitted in his written address filed for and on behalf of the Defendant that, the Defendant at all material times has not denied that he owes rent and that he rather accepts that he owes rent however rent was not paid due to certain circumstances which made it difficult for him to honour his obligation to the Plaintiff even though he disagrees with the amount stated in Exhibit '4'. As stated above the Defendant did not lead cogent evidence to rebut the evidence adduced by the Plaintiff in support of her claim of the accrued rent of USD 90,500.00. In the absence of satisfactory contrary evidence by the Defendant, I find the Plaintiff's evidence sufficient enough to establish her claim of accrued rent on the balance of probabilities. I accordingly answer issues 1 and 2 in the affirmative.

3. ***Whether or not the Defendant took possession of the property at a time when subject to the agreed scope of renovation to be done in the tenancy agreement was in a habitable condition.***

From the pleadings of the parties and the evidence on record, the parties agreed that some renovations were to be made before the Defendant would stay in same as his rented residence. This agreement was part of the tenancy agreement executed by the parties herein. Based on that, the parties agreed that the Defendant would not pay rent for the first three months.

From the evidence on record, the Defendant after inspecting the said property agreed with the Plaintiff to carry out the said renovation to make the place habitable. Therefore, if the property was not in a habitable condition aside the agreed renovation that was captured in the tenancy agreement, the Defendant ought to have immediately informed the Plaintiff.

Hence, for the Defendant to have waited until the Plaintiff started demanding for rent subsequent to his failure to pay rent for three years cannot be said to amount to the fact that the property was not in a habitable condition. This is because if the property was not in a habitable condition when the Defendant took possession, he would have informed the Plaintiff as soon as he went into possession of same.

From the evidence on record the Defendant waited until the Plaintiff's demand of three years' rent from June 2019 before he informed the Plaintiff about an issue of bad stench and his inability to use the property for the purpose for which it was rented i.e. residential purpose because the property was not in a habitable condition. The evidence on record does not suggest that immediately the Defendant took possession of the property he reported to the Plaintiff that the property was not in a habitable condition.

From the evidence on record, save the agreed renovations the Defendant was to carry out as stated in the tenancy agreement, the Defendant from his conduct was fine with the property when he took possession and even paid rent until June 2019 when he started to default in the payment of his rent to the Plaintiff. It is when the Plaintiff demanded for

Defendant's three years outstanding rent and gave him notice to vacate the property, that the Defendant, after the 3rd demand notice dated September 29, 2022 responded on 3rd October 2022 in which he pleaded for a little time to resolve any outstanding monies owed and then raised the issue of not been able to enjoy the property as a result of a bad stench.

The question any reasonable man would ask is, if indeed the property was inhabitable when the Defendant took possession, why did he still occupy same and paid rent until when he could not pay his rent and the Plaintiff demanded from him to pay and vacate the property that he brought it up? There is no reasonable answer to this question from the evidence on record as adduced by the Defendant.

I therefore find from the evidence on record that the place was in a habitable condition at the time the Defendant took possession of same.

4. ***Whether or not the Defendant carried out structural repairs and alterations to the property without the prior written consent of the Plaintiff.***

The Plaintiff in her pleading states that the Defendant has made structural and design changes to her property without prior notice to her or any written consent from her by making the Defendant in breach of clause 5.6 of the Tenancy Agreement. That the said breach has fundamentally changed the nature of the property and would cause her pecuniary loss in order to restore the property to its previous state.

In his defence the Defendant denied the said assertion by the Plaintiff and stated that the property remained inhabitable after he had carried out the agreed renovation works on the property. That there was a bad stench within the property such that he could not live

in the living room and other living areas of the house so he had to convert the car garage into a living room to be able to manage his stay in the house. The Defendant further states that he brought these issues to the attention of the Plaintiff and her husband Prof. Jackson through several communications but none of them visited the house until the complaint became persistent and the Plaintiff responded.

The Plaintiff in her evidence on the above issue testified that, apart from the structural changes, the Defendant has admitted to making without her prior approval, such as converting her car garage into a living room, the Defendant is constructing a staircase and a concrete floor to the roof of the building and putting up another structure on her property without prior due notice to her. The Plaintiff tendered in evidence Exhibit 'M series' which are pictures of structures on the said property. The Plaintiff further testified that the Defendant's unsanctioned and unauthorized changes he has made to the structure and design of her property has fundamentally changed the nature of her property which is contrary to the agreed terms of the Tenancy Agreement.

In his evidence the Defendant repeated his assertions in his pleading on the above issue that after had he carried out the said renovation works on the property there was some bad stench so he could not live in the living room and other areas of the house so he had to covert the car garage into a living room to be able to manage his stay in the house. That he brought these issues to the attention of the Plaintiff and her husband Prof. Jackson through several communications but none of them visited the house until the complaint became persistent and the Plaintiff responded. The Defendant tendered Exhibits '3' and '4' as copy of one of such correspondence.

From Exhibit '3' dated 3rd October 2022, it can be gathered that the Defendant was rather responding to the demand notices by way of letters written to him by the Plaintiff earlier, in which he pleaded for time to pay his outstanding rent and also brought up issues of

bad stench in the property. The Defendant stated in Exhibit '3' that he had to deploy the services of an architect and structural engineers to work on the property however because he liked the location and needed a place to stay, he decided not to discuss it with the Plaintiff or consider renegotiation. He also stated in Exhibit '3' that he invited Prof. to see the issues about the water damage in the walls among others and Prof. confirmed the awareness of sewage issues and that it had been addressed before.

However, the Plaintiff vehemently denied in her amended Reply that the Defendant sought her consent before carrying out structural changes on the property outside the scope they agreed on. In the face of the vehement denial by the Plaintiff that her consent was sought as provided under clause 5.6 of their tenancy agreement before Defendant carried out the said structural changes, the onus was on the Defendant to lead sufficient evidence that he sought the consent of the Plaintiff before carrying out such structural changes on the property.

The Defendant ought to have tendered the said evidence that sought the consent of the Plaintiff and the consent granted by the Plaintiff. Or better still, the Defendant ought to have called the said Prof. who the Plaintiff allegedly detailed to go and examine the complaints made by him. The Defendant could have also called other persons who were witnesses to his allegation.

From the evidence on record, there is no evidence to establish that the Defendant was given consent by the Plaintiff being his landlady and the owner of the property, before he converted the car garage into a living room; and also, to carry out structural changes to the property other than the renovation that was agreed on by the parties in clause 4.4 of their tenancy agreement. Consequently, I find from the evidence on record that the Defendant carried out structural repairs and alterations to the property without the prior written consent of the Plaintiff.

5. ***Whether or not the acts of the Defendant not paying rent since June 2018 and carrying out structural repairs and alterations to the property without the prior written consent of the Plaintiff, amount to a breach of the terms of the Tenancy Agreement.***

From the evidence on record and the analysis above, the Court has made findings that the Defendant has not paid rent from June 2019 and has also carried out structural repairs and alterations to the said property without the consent of the Plaintiff. From the provisions in the tenancy agreement executed by the parties and in evidence as Exhibit 'A' as well as Exhibit '1', the Defendant agreed to pay rent as provided in clause 3.1 of the said agreement. The Defendant as a tenant further agreed under clause 5.6 of the said agreement, not to carry out any other structural repairs, alterations among others without the prior written consent of the landlady (Plaintiff herein) such consent not to be unreasonably withheld. Also, the Defendant agreed to communicate any defect(s) to the landlady prior to any change or repairs by him as in clause 4.5 of the tenancy agreement.

However considering the findings of the Court above from the evidence on record, it can be safely concluded that the Defendant breached clauses 3.1, 4.5, and 5.6 of the tenancy agreement between him and the Plaintiff. I therefore find on the above issue that from the evidence on record, the acts of the Defendant not paying rent since June 2019 and carrying out structural repairs and alterations to the property without the prior written consent of the Plaintiff, amount to a breach of the terms of the Tenancy Agreement.

Having made a finding that the Defendant's acts described above amount to a breach of the terms of the tenancy agreement, it follows that the Plaintiff will be entitled to general damages for breach of contract.

The law is that, when there is a breach of contract, the injured party should be placed in the position he would have been in had the contract not been breached or had it been performed. In ***Juxon-Smith v. KLM Dutch Airlines [2005-2006] SCGLR 438***, the Supreme Court held that where a party has sustained a loss by reason of a breach of contract, he was, so far as money could do it, to be placed in the same situation with respect to damages, as if the contract had been performed.

A breach of contract occurs due to the action or inactions of the other party. Damages are the normal remedy for a contracting party who suffers as a result of a breach of contract by the other party. General damages need not be proved with evidence since it stems naturally from the breach.

In the case of ***Eastern Alloys Company Ltd v. Chicano Gold Mines (J4/48/2016) [2017] GHASC 5***, the Court found that damages is a method by which Courts offer monetary reparation to persons whose rights in contract law has been violated, as a means to restore them to the situation in which they would have been but for the violation. The Court found that in order to succeed with a claim for damages the Plaintiff must satisfy the Court with credible proof that there has been a breach, giving rise to the cause of action.

Also, in the case of ***Delmas Agency Ghana Limited v. Food Distributors International Limited* [2007-2008] SCGLR 748**, the Supreme Court held that an award of general damages is such as the law would presume to be the natural or probable consequence of the Defendant's act. It arises by inference of the law and therefore need not be proved by evidence. The law implies general damages in every infringement of an absolute right.

In the instant case, the findings from the evidence on record indicate that the Defendant breached the tenancy agreement by failing to pay rent as the parties agreed on under clause 3.1 of their tenancy agreement. Therefore, an order for the payment of the

accumulated outstanding rent together with interest will suffice as putting the Plaintiff in the position she would have been, had the Defendant not breached that term of their agreement. However, the interest rate shall be the LIBOR rate applicable to United States Dollar denominated debt since the parties transacted in United States Dollars.

By virtue of C.I. 52, post-judgment interest on judgment debt adjudged by a Court will follow as a matter of law. It has been judicially determined that Courts in Ghana cannot give judgment for the payment of any debt, money or damages except in Cedis and if the Courts award any money in foreign currency, then the rules governing monetary transactions applicable to that currency in that foreign country must prevail unless expressly provided for or agreed upon by the contracting parties.

See the case of ***Ghana Ports and Harbours Authority v. Issoufou [1993-94] 1 GLR 24***. With respect to this, the Supreme Court in the case of ***National Investment Bank Ltd v. Silver Peak Ltd [2003-2004] SCGLR 1008***, speaking through Date-Bah JSC, specifically stated that:

> *"It makes commercial sense for a dollar debt to attract a dollar interest rate because that interest rate reflects the macroeconomic conditions of the United States, which determine the rates applicable to dollar-denominated debts worldwide. Similarly, it makes commercial sense for a cedi debt to attract a cedi interest rate since that interest rate reflects Ghanaian macroeconomic conditions (including, for instance, the rate of depreciation of the cedi against the leading foreign currencies and high interest rates). Thus, if a cedi interest rate is applied to a dollar obligation, the obligee (that is, the creditor) will be overcompensated because the cedi interest rate, which necessarily reflects the high inflation rates in Ghana, will be applied to a dollar obligation which has not been subjected to that high inflation rate… Thus the fact that a foreign currency debt is discharged through the payment of its cedi equivalent by a Ghana resident, as such resident is obliged by law to do, does not*

change the nature of the underlying foreign currency debt and the fact that the appropriate interest rate which should attach to it is the usual interest rate commercially applicable to that currency. The mere fact of payment in cedis should not change the applicable interest rate and the Court of Appeal was in error in so holding."

From the pleadings of the parties as well as the evidence on record, the transaction between the parties was in United States Dollars. It is undisputable that the parties agreed on the rent payable in United States Dollars. This confirms that the agreement between the parties was not in Ghana Cedis but rather in United States Dollars and the interest rate prevailing in the United States of America should apply.

Again, the findings of this Court as stated above suggest that the Defendant also breached clauses 4.5 and 5.6 of the tenancy agreement between the parties. Therefore, the Plaintiff will be entitled to general damages for breach of the tenancy agreement and general damages are those which the law presumes as flowing naturally from the breach.

I shall next consider issues 7 and 8 together being ***"whether or not the Plaintiff has been interfering with the quiet enjoyment of the rented property****"; and "****whether or not the Plaintiff ejected Defendant from the property notwithstanding the pendency of the suit****".*

From the evidence on record, it is not in issue that the Plaintiff ejected the Defendant from the property during the pendency of this suit. Under cross examination the Plaintiff testified that before she came to this Court, she had earlier gone to the Rent Control so they took action. The Plaintiff further testified that after the Defendant's failure to pay his rent upon several demand notices to him, she reported the matter to the Rent Control Office in Accra. She tendered the correspondence between her Lawyers and the Defendant as well as the notice of complaint which is Exhibit 'H'.

The said notice of complaint is dated 4th January 2024. The Writ of Summons that instituted the instant suit was issued in the registry of this Court by the Plaintiff's Lawyer on 4th July 2023. Therefore, the Plaintiff decided to make a complaint at the Rent Office that the Defendant has absconded during the pendency of this suit; and the said complaint ended up in the District Court where the Rent Magistrate subsequently ordered the eviction of the Defendant. There is no evidence on record to establish that the Plaintiff reported the matter to the Rent Control Office before issuing the Writ herein against the Defendant in this Court as the Plaintiff asserted.

The Plaintiff has a relief for an order evicting the Defendant from the premises with immediate effect as her first relief endorsed on her Writ of Summons, yet she decided to use another avenue albeit lawful, to obtain that relief. The Defendant sought to quash the said order made by the Rent Magistrate however the High Court, Accra in its ruling dated 19th May 2025 on the Defendant's application for Certiorari which this Court has been given notice of same, dismissed the said application and stated that the District Court had jurisdiction and also did not breach the rules of Natural Justice when she made the order to evict the Defendant from the said property.

Given that the Plaintiff has already obtained an eviction order against the Defendant from another Court of competent jurisdiction, her relief for an eviction order before this Court is moot and the Court will not make any such order in this judgment. From the evidence on record, I find that the Plaintiff ejected the Defendant from the property notwithstanding the pendency of the suit. However, the said eviction was an order from a Court of competent jurisdiction.

On the issue of whether or not the Plaintiff has been interfering with the quiet enjoyment of the rented property, there is no evidence on record to suggest that the Plaintiff interfered with the quiet enjoyment of the rented property. This is because from the

evidence on record, the Defendant first breached the terms of agreement before the Plaintiff sought his lawful eviction from the property. Further to that, from the evidence on record, the Defendant was not even staying in the property as he alleges that there was a bad stench within the property that made it difficult to live there. However, there is no cogent evidence adduced by the Defendant to establish his allegation of bad stench within the property after the Plaintiff vehemently denied same. I accordingly answer the said issue in the negative for lack of satisfactory evidence in proof of same.

6. ***Whether or not the Defendant is entitled to recover from the Plaintiff an amount of USD 185,000.00 or its equivalent in Ghana cedis with accrued interest for breach of contract.***

The Defendant states in his pleading that he engaged the services of professional waste engineers to examine, identify the cause of the stench and resolve same at a cost of more than USD 65,000.00. That though the engineers conducted the works as directed, they could not resolve the problem with the bad stench, notwithstanding the huge amount of monies he paid to these engineers. The Defendant further states in his amended Statement of Defence and Counterclaim that he had to bear the costs of managing this bad odor alone from 2017 till date; which has effectively disturbed his peaceful and quiet enjoyment of the property. That the Plaintiff is therefore in breach of clause 6.3 of the Tenancy Agreement which entitles him to recover damages for breach of contract from the Plaintiff. That from the nature of the breach which had prevented him from the use of the property in accordance with the terms reached, he would be entitled to recover from the Plaintiff an amount of USD 120,000.00 in addition to the USD 65,000.00 already spent to abate the challenge with the bad stench in the house.

The Plaintiff denied this claim of the Defendant in her amended Reply and added that even if the Defendant engaged the services of professional waste engineers, he did so without prior notice to her which is in clear breach of clauses 4.5 and 5.6 of the tenancy agreement. The Plaintiff further denied that she is in breach of clause 6.3 of the tenancy agreement and added that it was a material term in the tenancy agreement that any other repair works outside the scope of the renovation in clause 4.4 to be undertaken by the Defendant was to be done subject to prior notice to her which the Defendant failed to do and thus in breach of the tenancy agreement.

In view of the Plaintiff's denial of the Defendant's assertions, the Defendant had a legal burden to prove his claims. In his evidence the Defendant only repeated the assertions in his pleadings and did not adduce satisfactory evidence to establish his allegations. There is no evidence on record to establish that the Defendant spent USD 65,000.00 to abate the alleged bad stench in the house.

In the case of **Klah v. Phoenix Insurance Company Ltd [2012] 2 SCGLR 1139,** it was held that:

> *"where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances, and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true"*

The Defendant could not discharge the legal burden of proof on him after the Plaintiff denied his allegations but he merely repeated on oath his assertions. The Defendant could not prove that he spent USD 65,000.00 on the property as he alleged. The Defendant did not also adduce any evidence to the effect that a bad stench caused him health problems

as he alleged. There was no medical evidence on record to the effect that the Defendant went to the United Kingdom to attend hospital as a result of any health issue caused by a bad stench in the said property.

The Plaintiff denied the claim of a bad stench in her property in her amended Reply, therefore there was a burden on the Defendant to lead sufficient evidence to support this assertion i.e. by calling the said Prof. Jackson who allegedly admitted the existence of this stench long before the property was rented out to the Defendant or lead credible and cogent evidence in support of these assertions. In any case the findings supra reveal that the Defendant did not even seek the prior consent of the Plaintiff as they agreed on, before carrying any repair work outside the scope in the agreement.

Had the Defendant been able to prove the alleged stench and an amount of USD 65,000.00 he spent on same; he still would not be entitled to recover same as he breached the terms of the tenancy agreement by not seeking prior consent of the Plaintiff before carrying out the alleged repair work.

In the case of ***Acquah v. Oman Ghana Trust Holdings Ltd*** **[1984-86]1GLR157,** the Court of Appeal held that:

> *"The company's (O's) counterclaim for the sum of ¢352,000 they claimed to have spent on alterations or improvements to the house should have been dismissed because:*
>
> *(i) on principle of public policy nobody should be allowed to take advantage of his own wrong. If in truth O made the alterations or improvements which they alleged, they were in breach of their covenant in the lease which obliged them to have obtained the prior consent in writing of A. And since in counterclaiming for the sum of ¢352,000 they were using their own breach of covenant as the foundation of their right to damages against A, that claim should have been dismissed".*

Applying the above authority to the instant case, I find that the Defendant is not entitled to recover from the Plaintiff an amount of USD 185,000.00 or its equivalent in Ghana cedis with accrued interest for breach of contract as there is no sufficient evidence on record to suggest that the Plaintiff breached the tenancy agreement.

9. ***Whether or not the Defendant is entitled to recover from the Plaintiff an amount of USD 38,800.00 or its cedis equivalent of GHS 504,400.00 going by the exchange rate of USD1.00 to GHS13.00 as at today and GHS 126,400.00 from the Plaintiff being monies lost due to the Plaintiff's ejection of Defendant from the property.***

The Defendant states in his pleadings that during the pendency of this suit, the Plaintiff, without notice to him, has evicted him and his entire household from the house. That he does not even know where his properties in the house have currently been placed. That the Plaintiff's conduct has brought untold hardship on him as he currently has no access to his personal belongings, which include cash amount of USD 38,800.00 and GHS 126,400.00 kept in the residence. That in view of the fact the all persons resident in the house were violently thrown out and locked outside the gate, none of the household items has since been recovered from the house.

In her amended Reply, the Plaintiff vehemently denied these averments by the Defendant in his amended Defence and Counterclaim. The Plaintiff stated that during the lawful ejection of the Defendant from the subject matter house under the orders of the Rent Magistrate, the Rent Officer conducted his investigation with due notice to the Defendant into the matter after a complaint filed before the commencement of this suit. That the Rent Officer took inventory with the assistance of the police and in the presence of

someone who claimed to be the security man employed by the Defendant and the house has been put under lock and key thereafter. That, it is also not true that the Defendant has not been given access to recover his personal belongings. That on 2nd February 2024, she sent a formal notice to the Defendant after the lawful ejection, to arrange for all his personal belongings to be cleared from the house within 14 days but the Defendant has since refused or neglected to do so causing untold hardship to her. That the security man, after witnessing the inventory being taken, left the house back to his village and asserted that in over a year since he had been working at the house, he had only set eyes on the Defendant just once. That her husband paid the security man who was the only person present in the subject matter property, his salary for the said month.

In view of the vehement denial by the Plaintiff of the Defendant's assertions in relation to the above issue, the Defendant had a burden of proof to substantiate his allegations. As stated above in the case of **Klah v. Phoenix Insurance Company Ltd,** supra, a party does not discharge his burden of proof to substantiate his averments by repeating his averments in his pleadings on oath. However, that is exactly what the Defendant did in this case. When the Defendant was given the opportunity to lead sufficient evidence to establish his claims and allegations against the Plaintiff on the above issue which are the basis for the reliefs in his Counterclaim, the Defendant in his evidence on oath, only repeated his assertions without adducing cogent evidence to establish same.

The law is very clear on allegations and it is trite learning that the legal principle is he who alleges assumes the burden of proof. Having made those assertions in his amended Statement of Defence and Counterclaim which were denied by the Plaintiff, the burden was on the Defendant to lead satisfactory evidence to prove his assertions.

In the case of ***Bank of West Africa Ltd. v. Ackun* [1963] 1 GLR 176-182, S.C.**, Sarkodee-Addo JSC stated:

"… The party who in his pleadings raises an issue essential to the success of his case assumes the burden of proof …"

Also, in the case of ***Barker-Wood v. Nana Fitz [2007] SCGLR 879,*** the Supreme Court held *that:*

> **"***The common law has always followed the common sense approach that the burden of persuasion on proving all facts essential to any claim lies on whoever is making the claim***."**
> See also ***Marian Obeng Mintah v. Francis Ampenyin [2016] 95 G.M.J. 1.***

However, the Defendant did not lead sufficient evidence to establish that he had USD 38,800.00 and GHS 126,400.00 in the property which got lost as a result of his eviction from the said property.

From the evidence on record, Exhibit 'K' is a copy of an inventory that was taken at the said house and certified by the Rent Control Department, Accra. Moreover, Exhibit 'L' indicates that on 2nd February 2024, the Plaintiff sent an email to the Defendant to inform him of the eviction upon a Court order, and further informed the Defendant to arrange for his personal effects to be removed from her property.

From the evidence on record therefore it cannot be true that the Defendant does not know where his properties in the house have been placed as he stated his amended Statement of Defence and Counterclaim filed on 29th May 2024 and repeated same on oath in his evidence on 20th May 2025 when he relied on his Witness Statement filed on 15th October 2024 as his evidence-in-chief. The Defendant having been informed by the Plaintiff of where his personal effects were kept upon the eviction, ought to have taken steps to go for them.

Also, the Defendant did not even tender in evidence, the said receipts of GHS 28,000.00 he mentioned under cross examination as his cost of transportation because he has to use Uber since the eviction date, to support the said assertion.

Flowing from the evidence on record and the above analysis, I find that in the absence of sufficient evidence, the Defendant is not entitled to recover from the Plaintiff an amount of USD 38,800.00 or its cedi equivalent of GHS 504,400.00 going by the exchange rate of USD 1.00 to GHS 13.00 as at today and GHS 126,400.00 from the Plaintiff being monies he allegedly lost due to the Plaintiff's ejection of Defendant from the property.

In the case of ***Memuna Amoudi v. Kofi Antwi*, Part 3, [2006] MLRG, 183 at 195,** the Supreme Court per Wood, JSC (as she then was) stated as follows:

> *"A cardinal principle of law on proof … is that a person who makes an averment or assertion … has the burden to establish that his averment or assertion is true. He does not discharge his burden unless he leads admissible and credible evidence from which the fact or facts he asserts can be properly and safely inferred*."

From the entire evidence before this Court and flowing from the above analysis, I find that on a balance of probabilities, the Plaintiff was able to lead sufficient evidence to be entitled to the reliefs she claims against the Defendant.

The Plaintiff denied the allegations of the Defendant her amended Reply and Defence to Counterclaim. Therefore, the Defendant had the burden of proof to establish his counterclaim against the Plaintiff.

In the case of ***Boakye v. Asamoah* [1974] 1 GLR 38 at 45**, the Court held that:

> *"legal or persuasive burden is borne by the party who would lose the issue if he does not produce sufficient evidence to establish the facts to the requisite standard imposed under*

section 10 of the Evidence Act, 1975 NRCD 323 that is, by a preponderance of probabilities."

The Defendant bore the legal burden and was thus required to prove that he is entitled to the reliefs he is counterclaiming against the Plaintiff. This burden, the Defendant could not discharge because he could not lead sufficient evidence to substantiate his claims on the balance of probabilities. I hereby find that the Defendant has failed in my candid opinion to make a good case for himself. I accordingly find that the Defendant is not entitled to the reliefs he seeks in his Counterclaim save relief (e) under the Counterclaim. The remaining reliefs under the Defendant's Counterclaim are hereby dismissed as unsubstantiated.

I rely on the statement of Adade JSC in the case of ***Nartey v. Mechanical Lloyd Assembly Press Ltd* [1987-1988] 2 GLR 314** when he stated that,

'*A person who comes to Court, no matter what the claim is, must be able to make a good case for the Court to consider, otherwise he must fail*'.

When a Court is called upon to resolve conflicting versions of facts, the duty of the Court is distilled in a crucial question articulated by Wood CJ in the case of ***Sarkodie v. FKA Co Ltd* [2009] SCGLR 65 @ page 69** in these words as follows:

"The main issue for the Court to determine is simply that, on a preponderance of the probabilities, whose story is more probable than not?" That question put differently is – whose evidence had more weight and credibility?

CONCLUSION

From the foregoing, I conclude that the Plaintiff has been able to lead cogent evidence to sustain her reliefs on the Writ. However, the Defendant has failed in his duty of providing and adducing sufficient evidence to establish his counterclaim.

The Court of Appeal applying the principle held in the case of ***Fordjour v. Kaakyire [2015] 85 GMJ 61.*** His Lordship Ayebi J.A. espoused:

> *"It has to be noted that the Court determines the merits of every case based on legally proven evidence at the trial and not mere allegations or assertions in the pleadings".*

On the basis of the entire evidence before this Court and the analysis above, I conclude that the Plaintiff has been able to prove her claims on a balance of probabilities; she is therefore entitled to her reliefs. On the other hand, the Defendant could not discharge the burden of proof on him to be entitled to the reliefs contained in his Counterclaim save relief (e) therein. Consequently, all the other reliefs under the Counterclaim are hereby dismissed.

In the circumstances, I hereby enter judgment in favour of the Plaintiff as against the Defendant as follows:

1. The Defendant is ordered to pay the amount of USD 90,500.00 or the cedi equivalent at the current exchange rate to the Plaintiff being the accumulated outstanding rent due as at 30th June 2023 and owing by Defendant.
2. The Defendant shall pay interest on the said USD 90,500.00 at the interest rate prevailing in the United States of America (LIBOR rate) from the date of judgment till the date of final payment.
3. General damages of GHS 50,000.00 is awarded against the Defendant in favour of the Plaintiff for breach of contract.

I further enter judgment for the Defendant on relief (e) under his Counterclaim to recover all his personal/household items or belongings which were kept in the disputed property.

COST

The Court has received oral submissions from both Lawyers on the award of costs. In assessing costs, *Order 74 of the High Court (Civil Procedure) Rules, 2004 (C.I 47)* provides useful guidance on the factors to consider in awarding costs. Therefore, to compensate the Plaintiff for expenses reasonably incurred in the suit in terms of filing fees and to provide reasonable remuneration of the Lawyer for the Plaintiff for work done, the travel expenses to Court, the nature of the case, the duration of the trial and the complexities of the issues involved, I will award costs GHS 20,000.00 in favour of the Plaintiff against the Defendant.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)